

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**202200567853CUPO: Jami Gaspar vs. County of Ventura
07/01/2026 in Department 42
Motion to Enter Judgment and Enforce Settlement**

Matter: Plaintiff's Motion to Enter Judgment and Enforce Settlement Against Defendant Pursuant to Code of Civil Procedure § 664.6

Tentative Ruling:

The Court is inclined to GRANT the motion.

A. Timeliness of the Defendant's Opposition

The Court has the discretion to disregard the late opposition filed by Defendant Furniture of America California, Inc., which was filed five days late. (See California Code of Civil Procedure, section 1005, subd. (b); California Rules of Court, rule 3.1300(d).) Here the Court considered the opposition despite its untimeliness.

B. Applicable Legal Standard

Code of Civil Procedure section 664.6 provides in relevant part: ☐

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(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment ☐ pursuant to ☐ the terms of the settlement. If requested by the parties, the court may ☐ retain ☐ jurisdiction ☐ over the parties to enforce the settlement until performance in full of the terms of the settlement. ☐

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"Code of Civil Procedure 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182; see also *Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429 [Code of Civil Procedure section 664.6 creates "a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met."].) "Section 664.6 states that if the parties to pending litigation enter into a settlement either in writing signed by the parties or orally before the court, the court, upon a motion, may enter judgment pursuant to the terms of the settlement." (*Hines v. Lukes, supra*, 167 Cal.App.4th at 1182.)

"A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations omitted.]" (*Id.*) "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (*Id.*)

"Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit. [Citations.]" (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) When the Court enters judgment on a settlement under Code of Civil Procedure section 664.6, it must do so under the terms of the agreement. "Code of Civil Procedure section 664.6 authorizes the trial court to enter judgment incorporating terms of a settlement agreement if parties stipulate in writing to settle the case and, if requested, retain jurisdiction to enforce its judgment. [Citation omitted.] On a motion to enforce, the court must determine whether the settlement agreement is valid and binding. [Citation omitted.] The court assesses whether the material terms of the settlement were reasonably well defined and certain, and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms. [Citation omitted.]" (*Estate of Jones* (2022) 82 Cal.App.5th 948, 952.)

The Court "may interpret the settlement terms and conditions, but it cannot impose terms to which the parties did not agree. [Citation omitted.]" (*Estate of Jones, supra*, 82 Cal.App.5th at 952; see also *Weddington Productions, Inc. v. Flick, supra*, 60 Cal.App.4th at 810 ["Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial *supra*, P 12:975 et seq., pp. 12(II)-76 to 12(II)-82-7; *Fiore v. Alvord* (1985) 182 Cal. App. 3d 561 [court may interpret terms of settlement agreement]), nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon."].)

"A settlement agreement is interpreted according to the same principles as any other written agreement. [Citation.] It must be interpreted to give effect to the mutual intent of the parties as it existed at the time, insofar as that intent can be ascertained and is lawful. [Citations.] If the language of the agreement is clear and explicit and does not involve an absurdity, determination of the mutual intent of the parties and interpretation of the contract is to be based on the language of the agreement alone. [Citations.]" (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1374.)

C. Application

There is no dispute that the parties, Plaintiff Jami Gaspar and Defendant Furniture of America California, Inc. ("FOA"), entered into a settlement agreement on August 20, 2025 to resolve this action. Paragraph 11 of that agreement states that: "The court reserves jurisdiction to enforce the terms and conditions of the settlement and any arbitration award pursuant to Code of Civil Procedure sections 664.6 and 1281 et seq., upon noticed motion of any party" (Ex. A.)

Nor is there any argument regarding Paragraph 7 of the settlement agreement, which expressly provides: "Plaintiff is responsible for any and all liens from settlement proceeds and will defend and indemnify DEFENDANTS against any unpaid claim or lien arising from this matter." (*Id.*)

Defendant FOA likewise does not contest Plaintiff's evidence proving that the notarized release executed by Plaintiff, at the top of page 2, states that "RELEASOR is responsible for satisfaction of all liens, including but not limited to the workers compensation lien." (Ex. B.)

Under the terms of the settlement agreement, FOA was to make payment within 35 days of certain conditions being met. It is established that those conditions have been satisfied, yet payment has not yet been made.

Instead, without citing any case law or binding authority, FOA's counsel argues that because AmTrust Financial Services, the worker's compensation carrier, filed a lien directly on its insurance carrier, Hanover Insurance Company, the Court should order FOA/Hanover to withhold \$130,000 from the settlement payment in order to satisfy any workers compensation lien. Alternatively, FOA argues that the Court should order Hanover to include AmTrust as a payee on the settlement check. Plaintiff objects to those terms and conditions.

The Court finds that neither of Defendant FOA's requests are justified. The pending workers' compensation matter does not excuse Defendant's failure to perform under the clear terms of the settlement agreement. In fact, Plaintiff expressly agreed to accept responsibility for any unresolved workers' compensation proceedings or potential lien issues. The parties clearly were aware of the existence of liens and claims arising from the litigation, and the agreement explicitly provides that Plaintiff is taking responsibility for them. FOA is contractually indemnified from any potential liability for those liens and/or claims in any event, and there is no valid reason to withhold payment. FOA has not established that the law requires a worker's compensation lien to be resolved prior to payment of the settlement amount. The parties could have included a provision tying payment of the settlement amount to resolution of the worker's comp lien, but they did not. The Court will not rewrite the agreement. (*Estate of Jones, supra*, 82 Cal.App.5th at 952; see also *Weddington Productions, Inc. v. Flick, supra*, 60 Cal.App.4th at 810.) Thus, Defendant FOA's delay and withholding of payment is not defensible.

D. Conclusion

Based on the undisputed evidence before the Court, the Settlement Agreement may be enforced under Code of Civil Procedure section 664.6 by entry of a judgment incorporating its terms. Accordingly, Plaintiff's Motion is GRANTED.

The statute states the "court may retain jurisdiction over the parties to enforce the settlement," but only if "requested by the parties." (Code Civ. Proc. § 664.6(a).) (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 437 ["When a court has jurisdiction over the parties and subject matter of a suit, its jurisdiction continues until a final judgment is entered."].) Since the action remains pending without a judgment or dismissal, the Court still has jurisdiction in the action to enforce the Settlement Agreement by entry of a judgment on the settlement pursuant to Code of Civil Procedure section 664.6.

Plaintiff shall lodge a proposed order for judgment pursuant to the terms of the Settlement Agreement, consistent with Code of Civil Procedure section 664.6(a) and applicable authority which shall set forth the terms of the Settlement Agreement in full as stated in the agreement or shall incorporate and make the Settlement Agreement in full the judgment of the Court. (*Hines v. Lukes, supra*, 167 Cal.App.4th at 1182-1183; *Machado v. Myers* (2019) 39 Cal.App.5th 779, 792.) Defendant shall have seven calendar days from the date of service of the lodged proposed order to file any objections to its form, which the Court will resolve without a hearing unless otherwise ordered.